

NEW YORK CITY
CIVILIAN COMPLAINT REVIEW BOARD

Date statute expires: 06/29/96

EXPEDITED CLOSING FORM

This investigation arose when complainant/victim, § 87(2)(b), alleged that her § 87(2)(b) was searched by Subject Police Officers. After searching the premises, they also allegedly closed the premises.

Investigator: F. Escoto-Reyes	Team	C.C.R.B. No.: 9500576	F.A.D.O.: Abuse	Pct.: 115
Date and Time of Incident: 12/29/94 at 2200		Date and Time Reported: 02/07/95 at 917	Location: § 87(2)(b) § 87(2)(b) Queens	
Complainant/Victim: § 87(2)(b)	Address § 87(2)(b)		Telephone § 87(2)(b)	Relationship:
Subject Police Officer(s): Joseph Campanella Michael Barreto Marc Piacenza Noel Digerolamo		Rank Shield: Tax No.: Precinct: Allegation(s): Sgt. 1705 881669 110 Abuse P.O. 12669 901152 110 Abuse P.O. 3837 902203 110 Abuse P.O. 06189 901462 110 Abuse		

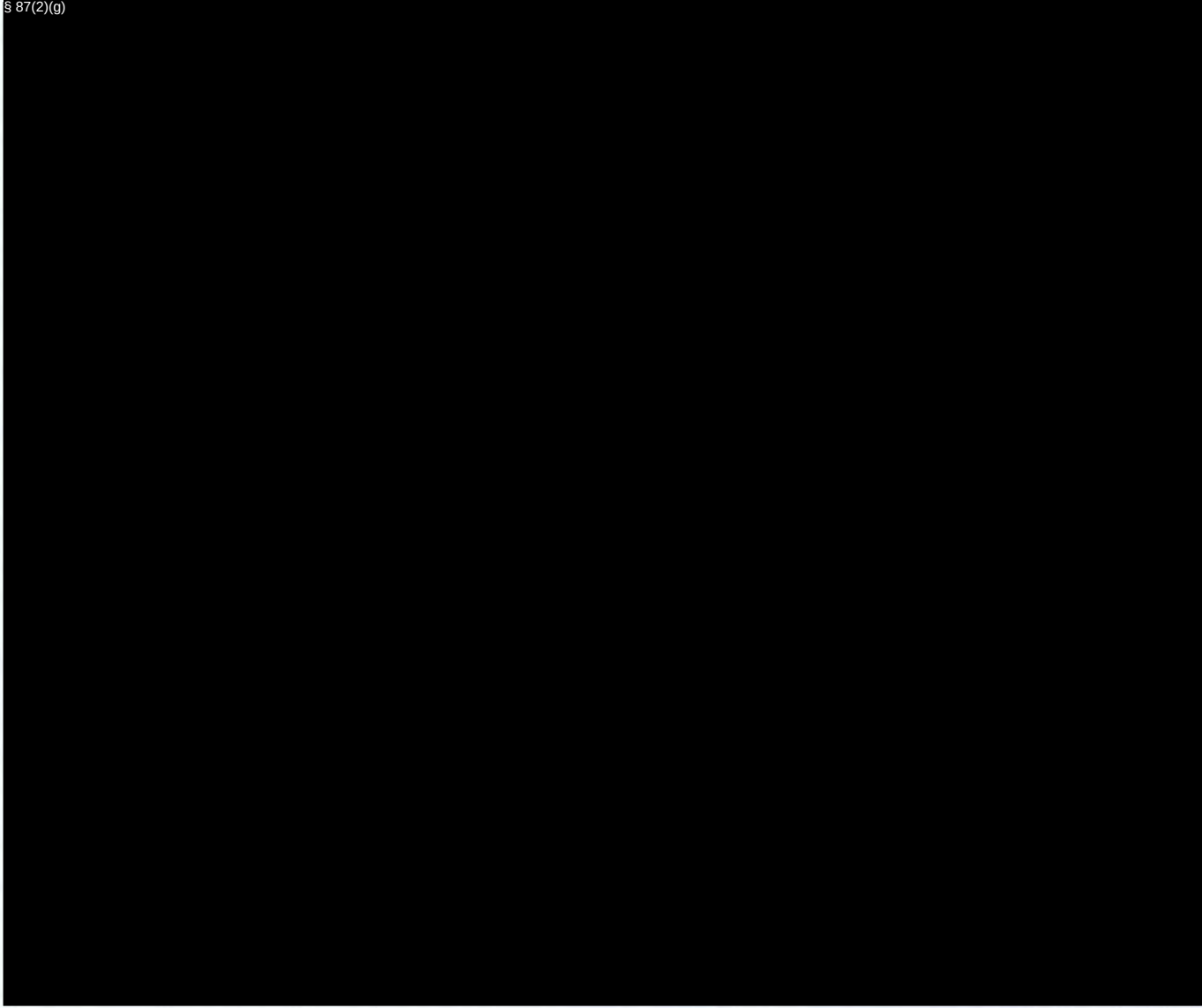
Allegations: Abuse: A) Search of Premises.
B) Closing of Premises.

- 1) Is complainant a witness to the incident: ☐ Yes ☒ No ☐ N/A
A) Was the complainant or victim arrested: ☐ Yes ☒ No, Explain:
B) Did complainant or victim receive a summon(es): ☐ Yes ☒ No, Explain:
C) Did the complainant or victim sustain injuries: ☐ Yes ☒ No, Explain:
D) Did the complainant or victim seek medical attention: ☐ Yes ☒ No
E) Was NYPD documents prepared: ☐ UF 250 ☐ UF 61 ☐ UF 49 ☒ N/A ☐ Other:

§ 87(2)(g)

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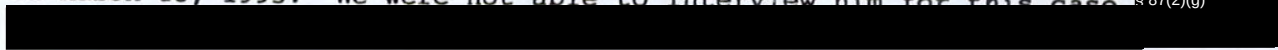
§ 87(2)(g)



§ 87(2)(g)



Explain: P.O. Noel Digerolamo
who is identified as one of the Subject Police Officers in this case resigned
on March 13, 1995. We were not able to interview him for this case. § 87(2)(g)



Remarks:

Sgt. Campanella stated the following: I responded to an 85 with my operator, P.O. Barreto, to the said premises. When we got there § 87(2)(b) showed me the lease for the premises that was under his wife's name. He also had a Power of Attorney to make decisions for his wife. He stated that this was his wife's § 87(2)(b) and he wanted the employers to leave. I went inside and spoke to the employees to see what they had to say. They did not speak English so I had P.O. Barreto translate. He did not get much of a response from them because § 87(2)(b) who was the alleged owner was not there. As they were getting ready to leave, § 87(2)(b) arrived and stated that his wife was in the process of buying the premises from § 87(2)(b) wife. That if he had any paperwork to show me he had a right to be there and he said he had no paperwork at all. He was concerned about the contents of the register and § 87(2)(b) told him to take the contents of the register. I don't recall anyone searching the premises and § 87(2)(b) was the only one that searched the register. I told § 87(2)(b) that the place to address this problem would be civil court.

P.O. Michael Barreto: We (my Sgt & myself) responded to an 85 (assist a P.O.) over the radio. When we arrived at the location a § 87(2)(b) showed the Sgt. some legal documentation that stated he was the owner of said premises. My Sgt. looked at the documents and found them in order. He had me speak to the people in the premises in Spanish since they did not know English. The owner, § 87(2)(b) was not present at the time. The husband, § 87(2)(b) was there and stated that his wife was buying the beauty parlor but had no proof of this. We told them they had to take their personal belongings and leave. § 87(2)(b) was the only one that took money out of the register. I never searched the premises.

P.O. Marc Piacenza: An 85 was called over the radio and I responded with Beat 2 (P.O. Digelarmo) to the premises. When we reached the location there was § 87(2)(b) § 87(2)(b) who showed us some legal documents and stated he owned the property. I called my Sgt to respond. We (Digelarmo and myself) went into the establishment and looked around but I did not go thru the cash register. When the Sgt. arrived he looked over the documents that § 87(2)(b) had in his possession and stated that they appeared legitimate. He asked everyone to leave the premises.

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Conclusion: According to the complainant/victim, § 87(2)(b) P.O.'s unlawfully searched and closed premises to her § 87(2)(b). At the time § 87(2)(b) called the P.O.'s he had a lease that was in his wife's name to the premises. He also had a Power of Attorney that legally gave him permission to make decisions for his wife. He wanted the employees out of the premises. When Sgt. Campanella arrived at the scene he examined the documents and they appeared to be in order. He asked § 87(2)(b) for any proof of ownership and he could provide none. He did state his wife was in the process of buying the § 87(2)(b) from § 87(2)(b) wife. In § 87(2)(b) § 87(2)(b)'s statement she also stated that she was in the process of buying the § 87(2)(b) but had not completed the transaction. § 87(2)(g)

§ 87(2)(b)

RECOMMENDATIONS:

§ 87(2)(g)

§ 87(2)(g)

Investigator Fidelina Escoto-Reyes

Date of Report June 10, 1996

Reviewed By _____

Date of Report _____

Reviewed By _____

Date of Report _____